IN THE COURT OF THE THIRD ADDITIONAL DISTRICT JUDGE OF COIMBATORE

E.A.NO. OF 2024

E.P.NO. 76 OF 2022

1. M.Subbiah (died) -- Petitioner/Decree holder
2. Sivanandam -- Proposed Parties

-Vs-

1. Karpagam
2. Nandhini
3. Naren @ Narayanasamy -- Respondent/JDs

COUNTER STATEMENT FILED BY 2nd RESPONDENT

1. The petition is false, frivolous and unsustainable in law and on facts of the case.

2. The petitioner is put to strict proof of all the allegations except those that are specifically admitted herein.

3. The averments in para 1 to 4 of the affidavit that the petitioner herein is the son of deceased Late.E.M.Subbiah who is the decree holder in the arbitration proceedings and the petitioner's father filed the above EP and during its pendency he died on 08.12.2021 by leaving behind the petitioner herein as the only legal heir etc., are all stoutly and categorically denied as false.

4. At this juncture, the present petition filed by the petitioner herein to implead him in the above EP as his son of Late.E.M.Subbiah who died on 08.12.2021 is incorrect. So also, there is no documentary proof produced along with petition to support the contentions in the affidavit. Hence, the petitioner is devoid of merits. This respondent denies that the 2nd petitioner is sole legal heir of deceased Subbiah and in fact other legal heirs may be available which could be ascertained only through verification of legal heirship certificate of late Subbiah which he conveniently not produced to support his contentions. The petitioner having known that he has no case, filed the present petition after 2 years only with an intention to drag on the case.

Therefore, it is prayed that this Hon'ble Court may be pleased to dismiss the petition with costs and thus render justice.

ADVOCATE FOR 2nd RESPONDENT **RESPONDENT NO.2**

VERIFICATION

I, the 2nd respondent above named do hereby declare that the facts stated above are true and correct to the best of my knowledge and I signed the same as Coimbatore on

RESPONDENT NO.2

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PRE On:

ADDRESS FOR SERVICE